



Statement of Environmental Effects

65A Vista Street, Sans Souci NSW 2219, Australia

Proposed Alterations and Additions to Existing Dwelling

OVERVIEW

This Statement of Environmental Effects (SEE) has been prepared on behalf of Samantha Watt in support of a Development Application (DA) submitted to Georges River Council (the Council) for proposed alterations and additions to the existing dwelling, comprising additions and internal reconfiguration to the existing upper ground floor and lower ground floor levels, façade upgrades, remedial works to address existing moisture and mould, and associated works to existing ancillary structures, at 65A Vista Street, Sans Souci NSW 2219, legally described as Lot 4 in Deposited Plan 232626 (the Site).

This SEE has been prepared pursuant to Section 4.12 of the Environmental Planning and Assessment Act 1979 (EP&A Act) and Part 3 of the Environmental Planning and Assessment Regulation 2021 (EP&A Regulation), and assesses the Proposal against the Georges River Local Environmental Plan 2021 (GRLEP2021) and the Georges River Development Control Plan 2021 (GRDCP2021). This SEE has been prepared in accordance with the EP&A Regulation, which requires an SEE to address the following:

- the environmental impacts of the development
- how the environmental impacts of the development have been identified
- the steps to be taken to protect the environment or to lessen the expected harm to the environment
- any matters required to be indicated by any guideline issued by the Secretary for the purposes of this clause

The purpose of this SEE is to identify the environmental impacts of the Proposal, demonstrate how those impacts have been considered and appropriately addressed, and establish that the Proposal is suitable for the grant of development consent. The environmental impacts of the Proposal and the measures taken to protect or minimise harm to the environment are addressed throughout the sections of this SEE.

PROPOSED DEVELOPMENT	
PROPOSAL	Proposed Alterations And Additions To Existing Dwelling
PROPERTY	65A Vista Street, Sans Souci NSW 2219, Australia
	Lot/Section/Plan no: 4/-/DP232626
LOCAL GOVERNMENT AREA	Georges River Council
CLIENT	Samantha Watt
DATE	June 18, 2026
Project Number	65A

SITE ANALYSIS

The Site is located in the suburb of Sans Souci within the Georges River local government area (LGA), in southern metropolitan Sydney. The Site has a total area of 725sqm, with a developable area of 646.5sqm exclusive of the access handle. The Site presents an irregular battle-axe configuration with a narrow access handle from the public road widening to the principal developable area at the rear. The Site has its frontage to Vista Street to the south, with the principal developable area set well back from the street and surrounded by adjoining residential properties. The configuration places the principal developable area of the Site well removed from the public road.



Figure 1: NSW Spatial Viewer Cadastral map of the Site.

The Site contains an existing dwelling together with associated ancillary structures, including an in-ground swimming pool, pool fencing, a pool equipment room or pool house, retaining walls, a driveway, external slab areas, and stairs. The existing dwelling and ancillary structures are the subject of the proposed alterations and additions and remedial works the subject of this DA.



Figure 2: Explorer Map Image of the Site reflecting broader location

Under the provisions of the GRLEP2021, the Site is zoned R2 Low Density Residential, with a minimum lot size of 700sqm, a maximum building height of 9m, and a maximum floor space ratio of 0.55:1.

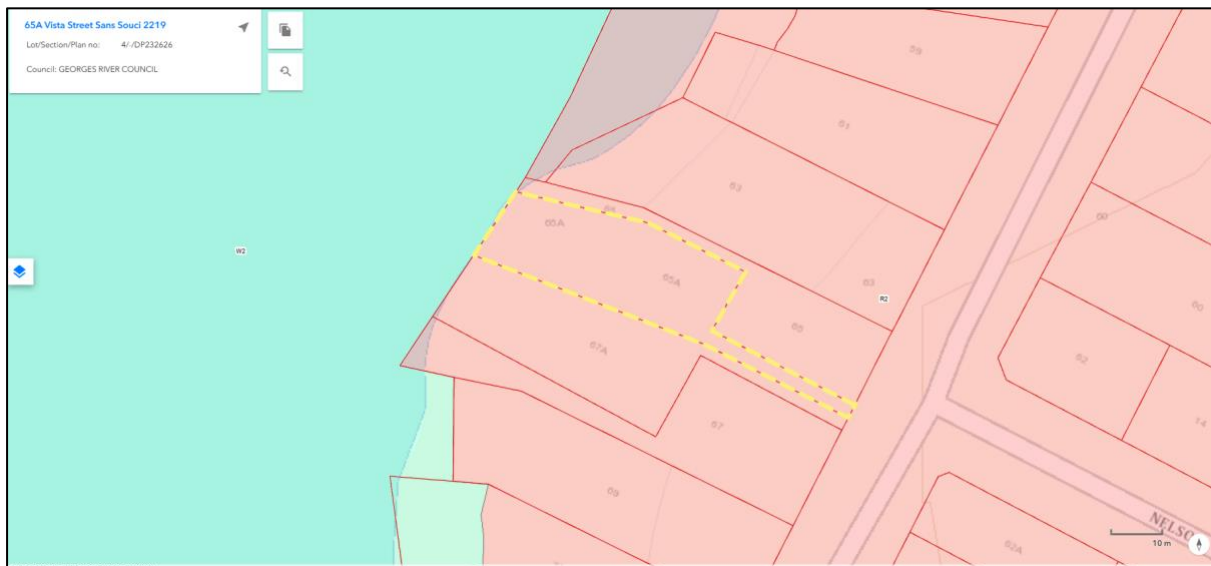


Figure 3: NSW Spatial Viewer zoning map of the Site.

The Site is not identified as a heritage item and is not located within a Heritage Conservation Area under the GRLEP2021 Heritage Map. The Site is not mapped as bushfire prone land. The Site is, however, affected by a number of mapped constraints under the GRLEP2021 and applicable State Environmental Planning Policies, comprising:

- Acid Sulfate Soils, containing Class 1, Class 2, and Class 5 land under the GRLEP2021;

- Foreshore Area and Foreshore Building Line under the GRLEP2021
- Foreshore Scenic Protection Area under the GRLEP2021;
- Riparian Lands and Watercourses under the relevant GRLEP2021
- 2100 Projected Sea Level Rise overlay under the relevant GRLEP2021; and
- Subject Land under State Environmental Planning Policy (Resilience and Hazards) 2021.

These mapped constraints are addressed in the Planning Assessment section of this SEE against the relevant clauses of the GRLEP2021 and applicable SEPPs. The Site is presently serviced by reticulated water, sewer, and electricity consistent with its established residential use. The Proposal does not seek to alter the servicing arrangement of the Site.



Figure 3: NSW Spatial Viewer Foreshore Building Line Map

LOCALITY ANALYSIS

Sans Souci is an established residential suburb located on the southern shore of Botany Bay, approximately 19km south of the Sydney central business district, forming part of the St George region within the Georges River LGA. The suburb adjoins Ramsgate, Sandringham, and Kogarah Bay, and is bounded to the south and west by the Georges River and Botany Bay foreshore reserves.

The immediate locality surrounding the Site is characterised by established low density residential development comprising predominantly detached dwellings on traditional suburban allotments, with mature gardens, established street trees, and a settled streetscape consistent with the R2 Low Density Residential zoning that prevails throughout the area. The proximity of the locality to the Botany Bay and Georges River foreshores informs the planning framework applying to the area, with foreshore building line, scenic protection, and riparian provisions oriented toward the protection of bayside character and scenic values.

Vista Street is a local residential road within the established Sans Souci grid, providing access between Russell Avenue and Rocky Point Road. Rocky Point Road is the principal arterial corridor through the locality, connecting Sans Souci northward to Ramsgate, Kogarah, and the broader St George area, and southward via the Captain Cook Bridge to Taren Point and the Sutherland Shire. The locality is served by regular bus services along Rocky Point Road providing connections to Kogarah, Hurstville, and the Sydney CBD.

The locality offers a comprehensive range of retail, dining, community, educational, and health amenities, including local centres at Sans Souci village and Ramsgate, primary and secondary schools within the immediate catchment, medical and allied health services, and recreational facilities. The Botany Bay and Georges River foreshore reserves provide significant open space, sporting fields, picnic areas, and waterfront amenity, contributing to the desirable lifestyle character of the locality. The Site is well integrated within this established bayside residential locality. The Proposal, being alterations and additions to the existing dwelling, is consistent with the prevailing low density residential character of the locality and the desired character anticipated under the GRLEP2021 planning framework.

DEVELOPMENT PROPOSAL

The Proposal involves alterations and additions to the existing dwelling at the Site, together with façade upgrades, remedial works to address existing moisture and mould, and works to existing ancillary structures. The Proposal does not involve the demolition of the existing dwelling, the construction of any new dwelling, the addition of any secondary dwelling, or the subdivision of the Site. The Site continues to be occupied by a single dwelling house in its existing use, retained across its existing two levels, being the lower ground floor at the rear of the Site addressing the in-ground swimming pool and the upper ground floor at street level.

The Proposal comprises the following components:

- Internal reconfiguration of the existing lower ground floor level, comprising reconfigured living, dining, kitchen, bar, mud room, and bathroom areas, together with a new electric fireplace and stone feature wall, contained within the existing floor area at this level.
- Additions and internal reconfiguration to the existing upper ground floor level at street level, comprising reconfigured master bedroom, additional bedrooms, ensuite, bathroom, walk-in robes, office or study, and garage, together with new garage storage. The works at this level account for the principal additions to the dwelling and are contained within the established built form.
- A new parapet and box gutter roof form constructed over the street-facing portion of the dwelling, with the balance of the existing pitched roof retained. The new roof form falls behind the parapet line and is contained below the 9m maximum building height control.
- Façade alterations to the existing dwelling, comprising a new timber batten facade, new stone cladding, new frameless corner windows, and the replacement of existing windows with new lightweight panelling and thermal glazing.
- Remedial works to address existing moisture and mould affecting the dwelling, comprising a new drainage cavity to the existing retaining wall to protect against ongoing moisture ingress, the replacement of the existing perspex screening with fixed clear glazing, and the use of new building materials throughout, with no reuse of materials from demolition.
- Replacement of the existing pool fencing serving the in-ground swimming pool with a new glass pool fence, together with new poolside paving and the demolition of the existing pool house, pool fence, and associated rockery landscaping.
- Associated works to the existing curtilage, comprising new landscaping, a raised garden bed, a new brick retaining wall, new timber stairs, and a new stone mailbox.
- Private open space is provided at ground level in association with the existing in-ground swimming pool, together with the retained grass and gravel areas of the Site. Vehicular access and parking are retained in their existing configuration at the upper ground floor level, supplemented by new garage storage. The Proposal does not extend the existing footprint of the dwelling at ground level, with all additions contained within and above the established built

form, and the landscaped areas of the Site are retained and supplemented through new landscaping and a raised garden bed.

PLANNING ASSESSMENT

The application is to be assessed against the relevant Environmental Planning Instruments below:

RELEVANT PLANNING INSTRUMENTS
1. Environmental Planning & Assessment Act (1979) 2. Environmental Planning & Assessment Regulations (2021) 3. State Environmental Planning Policy (Resilience and Hazards) 2021 4. Georges River Local Environmental Plan 2021

And the following Local Provisions:

RELEVANT LOCAL PLANNING INSTRUMENTS
1. Georges River Local Environmental Plan 2021

ENVIRONMENTAL PLANNING AND ASSESSMENT REGULATION (2021)

Section 25 - Concurrences and/or Approvals

The Proposal does not constitute integrated development within the meaning of the EP&A Act and does not trigger any requirement for concurrence from, or referral to, a State agency. The Site is not identified as a heritage item and is not within a heritage conservation area under the GRLEP2021, and accordingly no heritage referral obligation arises. The Site is not mapped as bushfire prone land and no referral to the NSW Rural Fire Service is required. The Site does not have frontage to a classified road and no referral to Transport for NSW is required. The DA may be assessed and determined by the Council in its capacity as the consent authority.

Section 27 - BASIX

Section 27 of the EP&A Regulation requires a BASIX Certificate to accompany a development application for BASIX-affected development. Where the Proposal constitutes BASIX-affected development, a BASIX Certificate is to be obtained and submitted with this DA, confirming that the Proposal achieves the required targets for water, energy, and thermal performance. The architectural plans and specifications are to reflect the BASIX commitments, which are carried through to the construction certificate stage.

STATE ENVIRONMENTAL PLANNING POLICY (RESILIENCE AND HAZARDS)

2021

The State Environmental Planning Policy (Resilience and Hazards) 2021 (R&H SEPP) consolidates provisions relating to coastal management, flooding, hazardous development, and land remediation. The Site is identified as Subject Land under the R&H SEPP, reflecting its location within the coastal management framework applying to the southern Botany Bay and Georges River foreshore. The relevant provisions are addressed under Chapter 2 (Coastal Management) and Chapter 4 (Remediation of Land) below.

Pursuant to Chapter 4 (Remediation of Land), the Site has historically been used for residential purposes and there is no record of any prior contaminating activity on or in the vicinity of the Site. The Proposal does not introduce a more sensitive land use, with the Site continuing to be used for residential purposes consistent with its established use. A Detailed Site Investigation is not warranted. The Site is not mapped as bushfire prone land. The Proposal does not involve any hazardous industry, hazardous storage establishment, or the storage of dangerous goods. The Proposal accordingly satisfies the relevant provisions of Chapters 3 and 4 of the R&H SEPP.

Chapter 2 Coastal management

Division 3 Coastal environment area

2.10	Development on land within the coastal environment area	
(1)	<i>Development consent must not be granted to development on land that is within the coastal environment area unless the consent authority has considered whether the proposed development is likely to cause an adverse impact on the following— (a) the integrity and resilience of the biophysical, hydrological (surface and groundwater) and ecological environment, (b) coastal environmental values and natural coastal processes, (c) the water quality of the marine estate (within the meaning of the Marine Estate Management Act 2014), in particular, the cumulative impacts of the proposed development on any of the sensitive coastal lakes identified in Schedule 1, (d) marine vegetation, native vegetation and fauna and their habitats, undeveloped headlands and rock platforms, (e) existing public open space and safe access to and along the foreshore, beach, headland or rock platform for members of the public, including persons with a disability, (f) Aboriginal cultural heritage, practices and places, (g) the use of the surf zone.</i>	
(2)	<i>Development consent must not be granted to development on land to which this section applies unless the consent authority is satisfied that— (a) the development is designed, sited and will be managed to avoid an adverse impact referred to in subsection (1), or (b) if that impact cannot be reasonably avoided—the development is designed, sited and will be managed to minimise that impact, or (c) if that impact cannot be minimised—the development will be managed to mitigate that impact. (3) This section does not apply to land within the Foreshores and Waterways Area within the meaning of State Environmental Planning Policy (Biodiversity and Conservation) 2021, Chapter 6.</i>	

Pursuant to Clause 2.10 of Chapter 2, Division 3 of the R&H SEPP, the Proposal has been assessed with regard to potential impacts on coastal environmental values and processes. The Proposal involves alterations and additions to the existing dwelling, comprising internal reconfiguration and additions to the existing upper ground and lower ground floor levels, a new parapet and box gutter roof form over part of the dwelling, façade alterations, remedial works to address existing moisture and mould, replacement of the existing pool fencing, and demolition of the existing pool house. The works are confined to the established built form and residential curtilage of the Site, with no expansion of the dwelling footprint at ground level, no substantial excavation beyond minor service or footing works, and no disturbance to coastal landforms.

The scale and nature of the Proposal ensure no adverse impact on the integrity or resilience of the biophysical, hydrological (surface or groundwater) or ecological environment, nor on coastal environmental values or natural coastal processes. The Proposal does not affect the water quality of the marine estate, including any sensitive coastal lake identified in Schedule 1, with the existing stormwater management arrangement of the Site retained and no increase in impervious area at ground level. The Proposal does not disturb marine vegetation, native vegetation, fauna habitats, undeveloped headlands, or rock platforms. The Site is private residential land and the Proposal does not affect any existing public open space or public access to or along the foreshore, beach, headland or rock platform. The works do not involve excavation that would disturb potential Aboriginal cultural heritage, practices, or places. The Proposal does not affect the use of the surf zone.

SUITABILITY OF THE SITE

Georges River Local Environmental Plan 2021

PART 2: PERMITTED OR PROHIBITED DEVELOPMENT

Zone R2: Low Density Residential	
1 Objectives of Zone	<i>To provide for the housing needs of the community within a low density residential environment. To enable other land uses that provide facilities or services to meet the day to day needs of residents. To promote a high standard of urban design and built form that enhances the local character of the suburb and achieves a high level of residential amenity. To provide for housing within a landscaped setting that enhances the existing environmental character of the Georges River local government area.</i>
2 Permitted Without Consent	<i>Home occupations</i>
3 Permitted With Consent	<i>Bed and breakfast accommodation; Boat sheds; Business identification signs; Car parks; Centre-based child care facilities; Community facilities; Dual occupancies; Dwelling houses; Early education and care facilities; Educational establishments; Emergency services facilities; Environmental facilities; Environmental protection works; Group homes; Health services facilities; Home businesses; Home industries; Jetties; Oyster aquaculture; Pond-based aquaculture; Public administration buildings; Recreation areas; Respite day care centres; Roads; Secondary dwellings; Semi-detached dwellings; Seniors housing; Tank-based aquaculture</i>
4 Prohibited	<i>Any development not specified in item 2 or 3</i>

The Site is zoned R2 Low Density Residential under the GRLEP2021. The Proposal constitutes alterations and additions to an existing dwelling house. A dwelling house is permissible with development consent in the R2 zone under the Land Use Table. The continuation of the existing residential use of the Site through the proposed alterations and additions is consistent with the objectives of the R2 zone, providing for the housing needs of the community within a low density residential environment, contributing to a high standard of urban design and residential amenity, and reinforcing the established residential character of the locality.

PART 4: PRINCIPAL DEVELOPMENT STANDARDS

4.3	Height of Building	
	(1)	<i>The objectives of this clause are as follows— (a) to ensure that buildings are compatible with the height, bulk and scale of the existing and desired future character of the locality, (b) to minimise the impact of overshadowing, visual impact, disruption of views and loss of privacy on adjoining properties and open space areas, (c) to ensure an appropriate height transition between new</i>

		<i>buildings and— (i) adjoining land uses, or (ii) heritage items, heritage conservation areas or Aboriginal places of heritage significance.</i>
	(2)	<i>The height of a building on any land is not to exceed the maximum height shown for the land on the <u>Height of Buildings Map</u>. – 9 metres</i>

The Proposal complies with Clause 4.3 of the GRLEP2021. The maximum building height applicable to the Site is 9m, as shown on the Height of Buildings Map. The Proposal maintains a maximum building height below the 9m control, as demonstrated on the architectural elevations and sections. The built form, comprising the existing dwelling with the proposed additions and new parapet and box gutter roof form, is compatible with the height, bulk, and scale of the existing and desired future character of the locality, in which two-storey detached dwellings are prevalent. The impact of overshadowing, visual impact, disruption of views, and loss of privacy on adjoining properties and open space areas is minimised through the containment of the additions within and above the existing built form, the retention of the existing dwelling footprint at ground level, and the design of the façade and window treatments. The Site is not adjoined by any heritage item, heritage conservation area, or Aboriginal place of heritage significance, and accordingly the height transition matter at subclause (1)(c)(ii) does not arise. The Proposal complies with Clause 4.3 of the GRLEP2021.

4.4	Floor Space Ratio	
	(1)	<i>The objectives of this clause are as follows— (a) to ensure that buildings are compatible with the bulk and scale of the existing and desired future character of the locality, (b) to ensure that development provides appropriate built form transition between new buildings and— (i) adjoining land uses, or (ii) heritage items, heritage conservation areas or Aboriginal places of heritage significance, (c) to control development density and intensity of land use, taking into account— (i) the environmental constraints and values of the site, including retaining the scenic, visual, and landscape qualities of the area, and (ii) the amenity of adjoining land and the public domain, and (iii) the availability of infrastructure to service the site, and (iv) the capacity of the road network to accommodate the vehicular and pedestrian traffic that a development will generate.</i>
	(2)	<i>The maximum floor space ratio for a building on any land is not to exceed the floor space ratio shown for the land on the <u>Floor Space Ratio Map</u>. – 0.55:1</i>

The Proposal complies with Clause 4.4 of the GRLEP2021. The maximum FSR applicable to the Site is 0.55:1, as shown on the Floor Space Ratio Map. Applied to the Site area of 725sqm, the maximum permissible gross floor area is 398.75sqm. The Proposal achieves a gross floor area of 294sqm, within this maximum permissible limit. The bulk and scale of the dwelling, comprising the existing dwelling with the proposed additions and reconfiguration, is compatible with the bulk and scale of the existing and desired future character of the locality and does not result in an overdevelopment of the Site. The built form provides an appropriate transition to adjoining residential properties. The density and intensity of the use is unchanged, with the Site continuing to be occupied by a single dwelling. The available infrastructure servicing the Site, comprising reticulated water, sewer, and electricity, is adequate to

service the Proposal. The Proposal does not generate additional vehicular or pedestrian traffic beyond that already associated with the existing dwelling. The Site is not adjoined by any heritage item, heritage conservation area, or Aboriginal place of heritage significance. The Proposal complies with Clause 4.4 of the GRLEP2021.

PART 6: ADDITIONAL LOCAL PROVISIONS

6.1	Acid sulfate soils												
(1)	<i>The objective of this clause is to ensure that development does not disturb, expose or drain acid sulfate soils and cause environmental damage.</i>												
(2)	<i>Development consent is required for the carrying out of works described in the table to this subclause on land shown on the <u>Acid Sulfate Soils Map</u> as being of the class specified for those works. – Class 1,2,5</i> <table> <tr> <th>Class of land</th><th>Works</th></tr> <tr> <td>1</td><td>Any works.</td></tr> <tr> <td>2</td><td>Works below the natural ground surface. Works by which the watertable is likely to be lowered.</td></tr> <tr> <td>3</td><td><i>Works more than 1 metre below the natural ground surface. Works by which the watertable is likely to be lowered more than 1 metre below the natural ground surface.</i></td></tr> <tr> <td>4</td><td><i>Works more than 2 metres below the natural ground surface. Works by which the watertable is likely to be lowered more than 2 metres below the natural ground surface.</i></td></tr> <tr> <td>5</td><td>Works within 500 metres of adjacent Class 1, 2, 3 or 4 land that is below 5 metres Australian Height Datum and by which the watertable is likely to be lowered below 1 metre Australian Height Datum on adjacent Class 1, 2, 3 or 4 land.</td></tr> </table>	Class of land	Works	1	Any works.	2	Works below the natural ground surface. Works by which the watertable is likely to be lowered.	3	<i>Works more than 1 metre below the natural ground surface. Works by which the watertable is likely to be lowered more than 1 metre below the natural ground surface.</i>	4	<i>Works more than 2 metres below the natural ground surface. Works by which the watertable is likely to be lowered more than 2 metres below the natural ground surface.</i>	5	Works within 500 metres of adjacent Class 1, 2, 3 or 4 land that is below 5 metres Australian Height Datum and by which the watertable is likely to be lowered below 1 metre Australian Height Datum on adjacent Class 1, 2, 3 or 4 land.
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5	Works within 500 metres of adjacent Class 1, 2, 3 or 4 land that is below 5 metres Australian Height Datum and by which the watertable is likely to be lowered below 1 metre Australian Height Datum on adjacent Class 1, 2, 3 or 4 land.												
(3)	<i>Development consent must not be granted under this clause for the carrying out of works unless an acid sulfate soils management plan has been prepared for the proposed works in accordance with the Acid Sulfate Soils Manual and has been provided to the consent authority.</i>												
(4)	<i>Despite subclause (2), development consent is not required under this clause for the carrying out of works if— (a) a preliminary assessment of the proposed works prepared in accordance with the Acid Sulfate Soils Manual indicates that an acid sulfate soils management plan is not required for the works, and (b) the preliminary assessment has been provided to the consent authority and the consent authority has confirmed the assessment by notice in writing to the person proposing to carry out the works.</i>												
(5)	<i>Despite subclause (2), development consent is not required under this clause for the carrying out of any of the following works by a public authority (including ancillary work such as excavation, construction of access ways or the supply of power)— (a) emergency work, being the repair or replacement of the works of the public authority, required to be carried out urgently because the works have been damaged, have ceased to function or pose a risk to the environment or to public health and safety, (b) routine maintenance work, being the periodic inspection, cleaning, repair or replacement of the works of the public authority (other than work that involves the disturbance of more than 1 tonne of soil), (c) minor work, being work that costs less than \$20,000 (other than drainage work).</i>												

	(6)	<i>Despite subclause (2), development consent is not required under this clause to carry out any works if— (a) the works involve the disturbance of less than 1 tonne of soil, and (b) the works are not likely to lower the watertable.</i>
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The Proposal complies with Clause 6.1 of the GRLEP2021. The Site is identified on the Acid Sulfate Soils Map as Class 1, Class 2, and Class 5. The Proposal does not involve any works of the type listed against Class 1 land beyond the Class 1 mapped extent, nor any works likely to lower the watertable. The proposed additions and reconfiguration, the new roof form, the façade and remedial works, and the works to existing ancillary structures are constructed over and within the existing built form footprint of the Site. The proposed works do not involve any disturbance of acid sulfate soils. The works are confined to and above the existing built form footprint, with no excavation below the natural ground surface level. Accordingly, no acid sulfate soils assessment is required for the proposed works. The Proposal complies with Clause 6.1 of the GRLEP2021.

6.4	Foreshore area and coastal hazards and risk	
	(1)	<i>The objectives of this clause are as follows— (a) to protect people and property from unacceptable risk from coastal hazards associated with climate change, (b) to ensure that development in the foreshore area will not impact on natural foreshore processes or affect the amenity of the area, (c) to facilitate opportunities for public access to and along the foreshore.</i>
	(2)	<i>This clause applies to the following land— (a) land identified on the Coastal Hazard and Risk Map, (b) land identified on the Foreshore Building Line Map.</i>
	(3)	<i>Development consent must not be granted for development on land to which this clause applies except for the following purposes— (a) the alteration, or demolition and rebuilding, of an existing building if the footprint of the building will not extend further forward than the footprint of the existing building into— (i) the foreshore building line, or (ii) the land identified on the Coastal Hazard and Risk Map, (b) the erection of a building if the levels, depth or other exceptional features of the site make it appropriate to do so, (c) boat sheds, cycling paths, fences, sea walls, swimming pools, water recreation structures or walking tracks.</i>
	(4)	<i>In deciding whether to grant development consent, the consent authority must consider the following matters— (a) whether the development addresses the impacts of sea level rise and tidal inundation as a result of climate change, (b) whether the development could be located on parts of the site not exposed to coastal hazards, (c) whether the development will cause congestion or generate conflict between people using open space areas or the waterway, (d) whether the development will cause environmental harm by pollution or siltation of the waterway, (e) opportunities to provide reasonable, continuous public access along the foreshore, considering the needs of property owners, (f) appropriate measures proposed to avoid, minimise or mitigate the impacts of the development.</i>
	(5)	<i>In this clause— foreshore area means the land between the foreshore building line and the mean high water mark of the nearest bay or river. foreshore building line means the line shown as the foreshore building line on the Foreshore Building Line Map.</i>

The Proposal complies with Clause 6.4 of the GRLEP2021. The Site is identified on the Foreshore Building Line Map and the clause is engaged accordingly. The Proposal constitutes the alteration of an existing building within the meaning of subclause (3)(a). The footprint of the dwelling at ground level is not extended further forward into the foreshore building line by the Proposal, with the additions constructed over and within the existing ground floor footprint and the works to existing ancillary structures confined to their existing positions. The Proposal accordingly falls within the permitted purposes at subclause (3)(a) and is capable of being granted consent under the clause.

In respect of the matters for consideration at subclause (4), the Proposal does not increase the exposure of the Site to the impacts of sea level rise and tidal inundation, with the principal habitable accommodation retained across the existing lower ground and upper ground floor levels and no new ground level footprint introduced below the 2100 Projected Sea Level Rise overlay. The Proposal cannot be relocated to parts of the Site not within the foreshore building line, as the works comprise alterations and additions to the existing dwelling in its existing location. The Proposal does not generate any congestion or conflict between people using open space areas or the waterway, with all activity confined to the private residential curtilage of the Site. The Proposal does not cause environmental harm by pollution or siltation of the waterway, with the existing stormwater management arrangement of the Site retained, no increase in impervious area at ground level, and no disturbance of the foreshore. The Site is private residential land with no existing public access along the foreshore through the Site, and the Proposal does not affect the Council's broader public access objectives. The Proposal incorporates appropriate measures to avoid, minimise, and mitigate impact through the retention of the existing dwelling footprint, the containment of the additions within the existing built form, and standard construction-stage environmental management. The Proposal complies with Clause 6.4 of the GRLEP2021.

6.5	Riparian land and waterways
(1)	<i>The objective of this clause is to protect and maintain the following— (a) water quality within waterways, (b) the stability of the bed and banks of waterways, (c) aquatic and riparian species, communities, populations and their habitats, (d) ecological processes within waterways and riparian areas, (e) Aboriginal cultural heritage values of riparian land and waterways.</i>
(2)	<i>This clause applies to land identified as “Sensitive land” on the Riparian Lands and Waterways Map.</i>
(3)	<i>In deciding whether to grant development consent for development on land to which this clause applies, the consent authority must consider the following— (a) whether the development is likely to have an adverse impact on the following— (i) the water quality and flows within the waterway, (ii) the stability of the bed, shore and banks of the waterway, (iii) the future rehabilitation of the waterway and riparian areas, (iv) the biophysical, hydrological or ecological integrity of adjacent coastal wetlands, including the aquatic and riparian species, habitats and ecosystems of the waterway, (v) indigenous trees and other vegetation, (vi) opportunities for additional planting</i>

		<i>of local native riparian vegetation, (b) whether the development is likely to increase water extraction from the waterway, (c) whether the development will cause environmental harm by pollution or siltation of the waterway, (d) appropriate measures proposed to avoid, minimise or mitigate the impacts of the development.</i>
	(4)	<i>Development consent must not be granted to development on land to which this clause applies unless the consent authority is satisfied that— (a) the development is designed, sited and will be managed to avoid significant adverse environmental impact, or (b) if that impact cannot be reasonably avoided—the development is designed, sited and will be managed to minimise that impact, or (c) if that impact cannot be minimised—the development will be managed to mitigate that impact.</i>

The Proposal complies with Clause 6.5 of the GRLEP2021. The Site is identified on the Riparian Lands and Waterways Map. In respect of the matters for consideration at subclause (3), the Proposal does not have an adverse impact on the water quality or flows within any waterway, with the existing stormwater management arrangement of the Site retained and no increase in impervious area at ground level. The Proposal does not affect the stability of the bed, shore, or banks of any waterway, with all works confined to the existing built form and residential curtilage of the Site. The Proposal does not affect the future rehabilitation of any waterway or riparian area, nor the biophysical, hydrological, or ecological integrity of any adjacent coastal wetland or associated species, habitats, or ecosystems. The Proposal does not involve the removal of any indigenous tree or vegetation, and does not preclude opportunities for additional planting of local native riparian vegetation on the Site. The Proposal does not increase water extraction from any waterway, with the Site to remain serviced by reticulated water. The Proposal does not cause environmental harm by pollution or siltation of any waterway, with standard construction-stage sediment and erosion controls to be implemented. The works are designed, sited, and to be managed to avoid significant adverse environmental impact, satisfying subclause (4)(a). The Proposal complies with Clause 6.5 of the GRLEP2021.

6.6	<i>Foreshore area and coastal hazards and risk</i>	
	(1)	<i>The objectives of this clause are— (a) to protect, maintain and improve the scenic amenity of the Georges River foreshore, (b) to protect, maintain and improve significant views of and from the Georges River, (c) to protect, maintain and improve the diversity and condition of native vegetation and habitats, (d) to reinforce and improve the dominance of landscape over built form, hard surfaces and cut and fill, (e) to encourage the recovery of threatened species and their communities, populations and habitats, (f) to enhance existing environmental, cultural and built character values of the foreshore.</i>
	(2)	<i>This clause applies to land identified as “Foreshore scenic protection area” on the Foreshore Scenic Protection Area Map.</i>
	(3)	<i>In deciding whether to grant development consent for development on land to which this clause applies, the consent authority must be satisfied that the development would facilitate the following— (a) the protection of the natural environment, including topography, rock formations, canopy vegetation or other significant vegetation, (b) the avoidance or minimisation of the disturbance and adverse impacts on remnant vegetation communities, habitat and threatened species and</i>

	<i>populations, (c) the maintenance and enhancement of native vegetation and habitat in parcels of a size, condition and configuration that will facilitate biodiversity protection and native flora and fauna movement through biodiversity corridors, (d) the achievement of no net loss of significant vegetation or habitat, (e) the avoidance of clearing steep slopes and facilitation of the stability of the land, (f) the minimisation of the impact on the views and visual environment, including views to and from the Georges River, foreshore reserves, residential areas and public places, (g) the minimisation of the height and bulk of the development by stepping the development to accommodate the fall in the land.</i>
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The Proposal complies with Clause 6.6 of the GRLEP2021. The Site is identified on the Foreshore Scenic Protection Area Map. The Proposal facilitates the protection of the natural environment, with all works confined to the existing built form footprint of the Site, no disturbance to topography, rock formations, or significant vegetation, and the existing landscaped areas of the Site retained. The Proposal does not disturb any remnant vegetation community, habitat, or threatened species or population, and does not involve the removal of any native vegetation or habitat. The Proposal achieves no net loss of significant vegetation or habitat. The Proposal does not involve the clearing of steep slopes or the destabilisation of land. The Proposal minimises impact on views and the visual environment, including views to and from the Georges River, foreshore reserves, residential areas, and public places, through the retention of the existing dwelling footprint at ground level, the maximum building height remaining below the 9m control, and the contained scale of the proposed additions and roof form. The Proposal minimises the height and bulk of the development consistent with the foreshore scenic protection objectives. The Proposal complies with Clause 6.6 of the GRLEP2021.

6.12	Landscaped areas in certain residential and conservation zones	
	(1)	<i>The objectives of this clause are as follows— (a) to ensure adequate opportunities exist for the retention or provision of vegetation that contributes to biodiversity and enhances the tree canopy of the Georges River local government area, (b) to minimise urban run-off by maximising permeable areas on the sites of development, (c) to ensure that the visual impact of development is minimised by sufficient and appropriately located landscaping that complements the scale of buildings, (d) to ensure that the use of surfaces that absorb and retain heat are minimised.</i>
	(2)	<i>This clause applies to development involving the erection of a new building, or external alterations or additions to an existing building, resulting in an increased building footprint on land in the following zones—(a) Zone R2 Low Density Residential, (b) Zone R3 Medium Density Residential, (c) Zone R4 High Density Residential, (d) Zone C2 Environmental Conservation.</i>
	(3)	<i>Despite subclause (2), this clause does not apply to residential apartment development within the meaning of State Environmental Planning Policy (Housing) 2021.</i>
	(4)	<i>Development consent must not be granted to development on land to which the clause applies unless the consent authority is satisfied that the development— (a) allows for the establishment of appropriate plantings— (i) that are of a scale and density commensurate with the height, bulk and scale of the buildings to which</i>

	<i>the development relates, and (ii) that will maintain and enhance the streetscape and the desired future character of the locality, and (b) maintains privacy between dwellings, and (c) does not adversely impact the health, condition or structure of existing trees, tree canopies or tree root systems that are to be retained as part of the development on the land or adjacent land, and (d) enables the establishment of indigenous vegetation and habitat for native fauna, and (e) integrates with the existing vegetation to protect existing trees and natural landscape features such as rock outcrops, remnant bushland, habitats and natural watercourses.</i>
(5)	<i>Development consent must not be granted to development on land to which this clause applies unless at least the following percentages of the site area consists of landscaped areas or natural rock outcrops— (a) for a dwelling house located on land outside the Foreshore Scenic Protection Area—20% of the site area, or (b) for a dwelling house located on land within the Foreshore Scenic Protection Area—25% of the site area, or (c) for a dual occupancy or semi-detached dwelling located on land outside the Foreshore Scenic Protection Area—25% of the site area, or (d) for a dual occupancy or semi-detached dwelling located on land within the Foreshore Scenic Protection Area—30% of the site area, or (e) for development in Zone R3 Medium Density Residential—20% of the site area, or (f) for development in Zone R4 High Density Residential—10% of the site area, or (g) for development in Zone C2 Environmental Conservation—70% of the site area.</i>
(6)	<i>If a lot is a battle-axe lot or other lot with an access handle, the area of the access handle and any right of carriageway is not to be included in calculating the site area for the purposes of subclause (5).</i>
(6A)	<i>This clause does not apply to a subdivision of land under the Community Land Development Act 2021 or the Strata Schemes Development Act 2015.</i>
(7)	<i>In this clause— footprint has the same meaning as in State Environmental Planning Policy (Exempt and Complying Development Codes) 2008, Part 9. Foreshore Scenic Protection Area means land shown on the Foreshore Scenic Protection Area Map.</i>

The Proposal is assessed on merit against Clause 6.12 of the GRLEP2021. The Site is zoned R2 Low Density Residential and the Proposal involves alterations and additions to the existing dwelling, engaging the clause through the operation of subclause (2)(a). The Site is within the Foreshore Scenic Protection Area, engaging the 25% minimum landscaped area requirement under subclause (5)(b). As the Site is a battle-axe allotment, subclause (6) requires the area of the access handle to be excluded from the calculation of the site area, producing a developable area of 646.5sqm and a minimum landscaped area requirement of 161.25sqm. The Proposal provides a landscaped area of 128.65sqm, which does not meet the prescriptive minimum of 161.25sqm. The shortfall is supported on merit. The Proposal increases the landscaped area of the Site from the existing 85.37sqm to 128.65sqm, a material improvement over the existing condition on an established, constrained allotment. The landscaped area is appropriately distributed, with 25.38sqm, being 19.73% of the total proposed landscaped area, located within the side setbacks, complying with the requirement that no more than 20% of the landscaped area be located within the side setbacks. No tree is removed from the Site, all existing natural features are retained, and the additions are contained within and above the existing dwelling footprint with no increase in impervious area at ground level. The Proposal is consistent with

the objectives of Clause 6.12, allowing for the establishment of appropriate plantings of a scale commensurate with the dwelling that maintain and enhance the desired future character of the locality, maintaining privacy between dwellings, not adversely impacting the health, condition, or structure of any existing tree on the Site or adjacent land, enabling the establishment of indigenous vegetation, and integrating with the existing vegetation and natural features of the Site. The variation to the numeric standard is supported on the basis that the Proposal materially improves the landscaped outcome of an existing constrained battle-axe allotment and satisfies the underlying objectives of the control.

Georges River Development Control Plan 2021

The GRDCP2021 applies to all land within the Georges River LGA and is read in conjunction with the GRLEP2021. The aims of the GRDCP2021 are to ensure that development contributes to the quality of the natural and built environments, contributes to the quality of the public domain, is economically, environmentally, and socially sustainable, has consideration for the needs of all members of the community, and positively responds to the qualities of the Site, its context, and the character of the surrounding area.

The aims of this DCP are to:

- *Ensure that development contributes to the quality of the natural and built environments.*
- *Encourage development that contributes to the quality of the public domain.*
- *Ensure that development is economically, environmentally and socially sustainable.*
- *Ensure future development has consideration for the needs of all members of the community.*
- *Ensure development positively responds to the qualities of the site and its context.*
- *Ensure development positively responds to the character of the surrounding area.*

The Proposal has been assessed against the relevant parts and controls of the GRDCP2021 applying to the Site and the Proposal. The compliance assessment is set out in the Compliance Summary Table below, which identifies the applicable controls of the GRDCP2021, the relevant requirements of each control, and the response of the Proposal against each requirement.

Georges River Development Control Plan 2021 – Compliance Assessment Table		
DCP Section	Requirements	Compliance Response
Part 3 — General Planning Considerations		
3.2.1 <i>Trees & Vegetation</i>	Controls 1. Development is to comply with the provisions of the State Environmental Planning Policy (Biodiversity and Conservation) 2021. 2. Development is to comply with the provisions of the Biodiversity Conservation Act 2016 and the Biodiversity Regulation 2017. 3. All works are to comply with Council's Tree Management Policy. 4. For the purpose of this section, a tree is defined as vegetation having a: • Height of 3 metres or more, or • Diameter of 100mm or more when measured at ground level, or • Branch spread of 3 metres or more.	The Proposal does not involve the removal of, or works to, any tree on the Site. The works are confined to the existing dwelling footprint and to existing ancillary structures, including retaining walls, driveway, slabs, stairs, and pool fencing, together with the demolition of the existing pool house. The Proposal is consistent with Section 3.2.1.
3.5.1 <i>Excavation (including cut and fill)</i>	Controls 1. Natural ground level should be maintained within 900mm of a side and rear boundary. 2. Cut and fill should not alter natural or existing ground levels by more than 1m. 3. Habitable rooms (not including bathrooms, laundries and storerooms) are to be located above existing ground level. 4. Rock outcrops, overhangs, boulders, sandstone platforms or sandstone retaining walls are not to be removed or covered. 5. Development is to be located so that clearing of vegetation is avoided. 6. Cut and fill within a tree protection zone (TPZ) of a tree on the development site or adjoining land, must be undertaken in	The Proposal comprises additions and internal reconfiguration to the existing upper ground and lower ground floor levels, a new parapet and box gutter roof form over the street-facing portion of the dwelling, façade alterations, and remedial works to address existing moisture and mould, including a new drainage cavity to the existing retaining wall. The Proposal does not involve excavation for any new basement or below-ground structure, the removal or covering of any rock outcrop, overhang, boulder, sandstone platform, or sandstone retaining wall, or any cut or fill that alters natural or existing ground levels by more than 1m.

	<i>accordance with Australian Standard AS 4970 (Protection of trees on development sites).</i> <i>7. Soil depth around buildings should be capable of sustaining trees as well as shrubs and smaller scale gardens.</i> <i>8. Earthworks are not to increase or concentrate overland stormwater flow or aggravating existing flood conditions, on adjacent land.</i> <i>9. Fill material must be virgin excavated natural material (VENM) or fill that meets all of the conditions of a recourse recovery order issued by the NSW Environmental Protection Authority (EPA).</i> <i>10. For sites identified as flood affected, any cut and fill works, included in the development are to comply with the requirements of Council's Stormwater Management Policy, specifically Chapter 6 – Flooding and Overland Flow.</i>	No vegetation is removed and no work occurs within the tree protection zone of any tree on the Site or on adjoining land. No fill material is imported. No alteration to overland stormwater flow paths is proposed. The Proposal is consistent with the objectives of Section 3.5.1.
3.5.2 <i>Construction Management / Erosion and Sediment Control</i>	Controls <i>1. Development must minimise any soil loss from the site to reduce impacts of sedimentation on waterways through the use of the following: • Sediment fencing • Water diversion • Single entry / exit points • Filtration materials such as straw bales and turf strips.</i> <i>2. Development that involves site disturbance is to provide an erosion and sediment control plan which details the proposed method of soil management and its implementation. Such details are to be in accordance with The Blue Book – Managing Urban Stormwater: Soils & Construction by Landcom.</i> <i>3. Development is to minimise site disturbance, including impacts on vegetation and significant trees and the need for cut and fill.</i> <i>4. Construction works within a tree protection zone (TPZ) of a tree on the development site or adjoining land, must be undertaken in accordance with AS 4970 (Protection of trees on development sites).</i>	Standard construction-stage erosion and sediment control measures are to be implemented for the duration of the works, comprising sediment fencing, single site entry and exit point, and filtration materials at stormwater inlets, in accordance with The Blue Book – Managing Urban Stormwater: Soils & Construction by Landcom. An Erosion and Sediment Control Plan can be prepared and submitted as a condition of consent. Site disturbance is minimised by confining the works to the existing dwelling footprint and existing ancillary structures, with the additions contained within and above the established built form. No work is undertaken within the tree protection zone of any tree. The Proposal is consistent with the objectives of Section 3.5.2.

	5. Development which has high potential risk to groundwater must submit a geotechnical report to address how possible impacts on groundwater are minimised. 6. Work must not be carried out in a public road or footpath unless a permit has been granted by Council (or other relevant roads authority) under s.138 of the Roads Act 1993, and / or s.68 of the Local Government Act 1993.	
3.6 Contaminated Land	Controls 1. Each development application is to include information sufficient to allow Council to meet its obligation to determine whether development should be restricted due to the presence of contamination. 2. Proposals for the development of contaminated land or potentially contaminated land will need to determine: i. The extent to which land is contaminated (including both soil and groundwater contamination); ii. Whether the land is suitable in its contaminated state (or will be suitable after remediation) for the purpose for which the development is proposed to be carried out; iii. Whether the land requires remediation to make the land suitable for the intended use prior to that development being carried out; and iv. If the land has been previously investigated or remediated, development cannot be carried out until Council has considered the nature, distribution and levels of residues remaining on the land and Council has determined that the land is suitable for the intended use. 3. Operating practices and technology must be employed to prevent contamination of groundwater.	The Site has historically been used for residential purposes. There is no record of any prior contaminating activity on or in the vicinity of the Site. The Proposal does not introduce a more sensitive land use, with the Site continuing to be used for residential purposes consistent with its established use. A Detailed Site Investigation is not warranted. The Proposal is consistent with the objectives of Section 3.6 and Chapter 4 of the State Environmental Planning Policy (Resilience and Hazards) 2021.
3.9.2 Sea Level Rise	Controls 1. Development on land identified on the Georges River LEP 2021 'Coastal Hazard and Risk Map' must implement measures to mitigate the adverse effects of projected sea level rise and increases in flood levels on the development. 2. Development should be designed and situated to reduce the risk from the effects of sea level rise. For example, structures should be located on the highest	The Site is identified within the 2100 Projected Sea Level Rise overlay under the GRLEP2021. The Proposal comprises alterations and additions to the existing dwelling and does not introduce any new habitable floor level at or below the existing ground floor level, with habitable accommodation retained across the existing lower ground and upper ground floor levels of the dwelling. No new ground floor habitable area is created that would increase the exposure of the dwelling to projected tidal or coastal inundation beyond the existing condition.

	<i>part of the Lot and/or located on the lot away from the foreshore or coastline while still satisfying other controls and objectives of the DCP.</i> <i>3. Development on land adjacent to tidal waters, including the Georges River and Salt Pan Creek, should be designed to minimise the risk to property and the environment from sea level rise in the event of a 1% AEP flood by:</i> <i>i. Siting the floor level of habitable rooms, wet areas and other sensitive uses (e.g. on-site wastewater disposal areas) 1.4m above the 1% AEP riverine flood level. The 1.4m is to allow for the 2100 (year) NSW sea level rise planning benchmark of 0.9m and 0.5m freeboard.</i> <i>ii. Siting other non-habitable structures (e.g. sheds, decks, pergolas) 0.7m above the 1% AEP riverine flood level. The 0.7m is to allow for the 2050 (year) NSW sea level rise planning benchmark of 0.4m and 0.3m freeboard.</i> <i>iii. Siting all garages and basements 1.2m above the 1% AEP riverine flood level. The 1.2m is to allow for the 2100 (year) NSW sea level rise planning benchmark of 0.9m including 0.3m freeboard.</i>	The dwelling is an existing structure and the Proposal does not relocate it. The works are confined to and above the existing built form, and the floor levels of the existing dwelling are unchanged. The remedial works to address existing moisture and mould, including the new drainage cavity to the existing retaining wall, improve the resilience of the dwelling against moisture ingress. The Proposal is consistent with the objectives of Section 3.9.2.
3.10 <i>Water Management</i>	Water Quality Controls <i>10. Measures to control pollutants in stormwater discharge from development sites are to be included in any development. Refer to Section 3.5.2 – Construction Management / Erosion and Sediment Control of this DCP.</i> <i>11. Runoff entering directly to waterways or bushland is to be treated to reduce erosion and sedimentation, nutrient and seed dispersal.</i>	The existing stormwater management arrangement of the Site is retained. The Proposal does not increase impervious area at ground level, with the additions contained within and above the existing ground floor footprint and the works confined to existing ancillary structures and the demolition of the existing pool house. Construction-stage pollution controls are addressed under Section 3.5.2. The Proposal is consistent with the objectives of Section 3.10.
3.11.1 <i>Energy and Water Efficiency</i>	Controls – Residential Buildings <i>1. All BASIX affected development must comply with SEPP (Building Sustainability Index: BASIX) 2004.</i>	BASIX is addressed under Section 27 of the EP&A Regulation 2021. The Proposal complies with the BASIX requirements applying to the Proposal as a matter of statutory compliance.

		The Proposal is consistent with the objectives of Section 3.11.1.
3.12 Waste Management	Controls <i>1. Development must comply with Council's Waste Management requirements regarding construction waste and ongoing management of waste materials (see Appendix 4).</i>	A Waste Management Plan addressing construction-stage waste, demolition waste, and ongoing waste storage arrangements for the dwelling is submitted with this DA in accordance with Council's Waste Management requirements. The Proposal is consistent with the objectives of Section 3.12.
3.13 Parking, Access and Transport	Controls – Parking Rates (Dwelling House) • 1 space per 1 and 2 beds • 2 spaces per 3 beds or more	The existing on-site car parking arrangement of the Site is retained. The Proposal does not alter the configuration of the existing driveway or vehicular access. No additional car parking demand is generated by the Proposal, with the dwelling continuing to accommodate a single household. The Proposal is consistent with the objectives of Section 3.13.
3.20.3 Noise Generating Development	Controls <i>1. Development should be sited and designed so that noise is kept to a minimum and does not create offensive noise as defined by the Protection of the Environment Operations Act 1997.</i> <i>2. Noise generating developments should be accompanied by an acoustic report that demonstrates the development is sited and designed to: i. Minimise the effect of noise and vibration on surrounding sensitive landuses; and ii. Comply with relevant State Government and Council guidelines.</i> <i>3. The location and design of noise generating activities, such as loading and unloading areas, garbage collection areas, driveways, parking areas, active recreation areas, air conditioning or mechanical plants, should be sited away from adjacent sensitive landuses and/or screened by walls or other acoustic treatments.</i>	The Proposal does not introduce any new noise-generating activity beyond the ordinary residential use of the dwelling. A new air conditioning condenser is proposed at the upper ground floor level and is to be sited and, where necessary, screened or acoustically treated to minimise noise transmission to adjoining sensitive land uses. Space is allocated for new pool equipment serving the retained in-ground swimming pool, to be similarly located and treated to minimise noise. The existing pool house is demolished. No offensive noise as defined by the Protection of the Environment Operations Act 1997 is generated by the Proposal. The Proposal is consistent with the objectives of Section 3.20.3.
Part 5 — Residential Locality Statements		
5.20 Sans Souci and Ramsgate Locality Statement	Future Desired Character • Retain and enhance the existing low density suburban residential character through articulated contemporary developments that respond to the human scale.	The Proposal is consistent with the Future Desired Character of the Sans Souci and Ramsgate locality. The Proposal retains and enhances the existing low density suburban residential character through alterations and additions to the existing dwelling at human scale, comprising additions and internal reconfiguration to the existing upper ground and lower ground

	• Encourage well-designed high density residential development in designated areas along Rocky Point Road. • Encourage consistent setbacks of buildings from the street and the provision of landscaping within the front setback, alongside low fencing to enhance visual permeability. • Encourage the retention of trees and sharing of water views wherever possible, including screening via vegetation rather than solid walls. • Protect public vistas over Georges River towards Kogarah Bay from Vista Street.	floor levels, a new parapet and box gutter roof form over part of the dwelling, façade upgrades, and works to existing ancillary structures, all contained within and above the existing built form. The Proposal does not affect any tree on the Site, retains the existing landscaped areas, and does not affect any public vista over the Georges River toward Kogarah Bay from Vista Street, with the Site located on the western side of Vista Street and the alterations confined to the existing dwelling footprint. The Proposal is consistent with Section 5.20.
Part 6.1 — Dwellings, Dual Occupancies, Secondary Dwellings and Narrow Lot Housing (Low Density) — Section 6.1.2 Single Dwellings		
6.1.2.1 Streetscape Character and Built Form	Controls 1. New buildings and additions are to consider the Desired Future Character statement in Part 5 of this DCP. 2. New buildings and additions are to be designed with an articulated front façade. 3. Developments on sites with two (2) or more frontages are to address all frontages. 4. Dwelling houses are to have windows presenting to the street from a habitable room to encourage passive surveillance. 5. Development must be sensitively designed so as to minimise adverse impacts on the amenity and view corridors of neighbouring public and private property while maintaining reasonable amenity for the proposed development and is to balance this requirement with the amenity afforded to the new development. 6. The maximum size of voids at the first floor level should be a cumulative total of 15m² (excluding voids associated with internal stairs).	The Proposal has been designed in consideration of the Future Desired Character statement at Section 5.20 for the Sans Souci and Ramsgate locality, retaining and enhancing the existing low density suburban residential character of the area. The Site is a battle-axe configuration with a narrow access handle to Vista Street. The principal developable area of the Site is set well back from the public road, and the dwelling does not present a primary façade directly to Vista Street in the conventional sense. Streetscape impact at the Vista Street frontage is therefore limited to the access handle, which is unaffected by the Proposal. The Proposal results in a cumulative upper level void area of 0.94sqm, comprising a mechanical void and a shelf void, well within the 15sqm cumulative maximum and excluding voids associated with the internal stair. The Proposal is consistent with the objectives of Section 6.1.2.1.
6.1.2.2 Building Scale and Height	Controls 1. New buildings are to consider and respond to the predominant and desired future scale of buildings within the	The Proposal retains the existing two-storey dwelling configuration, comprising the existing lower ground and upper ground floor levels, with additions and reconfiguration contained within and above the existing built form. Two storeys

	<i>neighbourhood, and consider the topography and form of the site.</i> <i>2. On sites with a gradient or cross fall greater than 1:10, dwellings are to adopt a split-level approach to minimise excavation and fill. The overall design of the dwelling should respond to the topography of the site.</i> <i>3. A maximum of two (2) storeys plus basement is permissible at any point above ground level (existing). Basements are to protrude no more than 1m above existing ground level.</i> <i>4. Where topography conditions require a basement, the area of the basement should not exceed the area required to meet the car parking requirements for the development, access ramp to the parking and a maximum 10m² for storage and 20m² for plant rooms. Additional basement area to that required to satisfy these requirements may be included as floor space area when calculating floor space ratio.</i> <i>5. Where the entry to the basement carpark is visible from the street, the entry should be recessed a minimum of 1m (from the edge of the external wall or balcony) from the levels above and the external walls of the garage differentiated from the walls above through articulation and external materials.</i>	is permitted at any point above existing ground level under Control 3. No basement is proposed by the Proposal. Controls 4 and 5 are not engaged. Compliance with the maximum building height of 9m under Clause 4.3 of GRLEP2021 is addressed in the Suitability of the Site section of this SEE. The Proposal is consistent with the objectives of Section 6.1.2.2.
6.1.2.3 Setbacks	Controls – Front Setbacks <i>1. The minimum setback from the primary street boundary is: i. 4.5m to the main building wall / façade; ii. 5.5m to the front facade of a garage or carport, or at least 1m behind the main building wall / façade, whichever is the greater; iii. Where the prevailing street setback is greater than the minimum, the average setback of dwellings on adjoining lots is to be applied.</i> <i>2. Balconies cannot encroach into the front setback space.</i> <i>3. For corner lots, the setback from the secondary street boundary is to be at least: i. 1.2m to the building line if the site is less than 15m in width; or ii. 2.0m to the building line if the site is 15m or greater in width.</i> Controls – Side and Rear Setbacks	The Site is a battle-axe configuration. The principal developable area of the Site is set well back from Vista Street via the access handle. The 4.0m minimum front setback under Control 7 applies to the battle-axe lot front setback. The additions are constructed over and within the existing footprint of the dwelling and do not introduce any new external wall outside the existing footprint. The setback condition of the dwelling at all boundaries is unchanged by the Proposal. Where any existing side setback is less than the prescriptive minimum, Control 6 permits the maintenance of the reduced setback for alterations and additions to an existing dwelling, provided solar access, landscaped area, and amenity are not adversely affected. The Proposal satisfies these conditions. The Site is within the Foreshore Scenic Protection Area, engaging the 1.5m minimum side setback under Control 5(iii) for new construction. As the additions are constructed over and within the existing footprint

	<i>4. Buildings are to have a minimum rear setback of 15% of the average site length, or 6m, whichever is the greater (excluding detached secondary dwellings).</i> <i>5. The minimum side setbacks for ground and first floor are: i. 900mm for lots up to 12.5m in width measured at the front building line for the length of the development. ii. 1.2m for lots greater than 12.5m in width measured at the front building line for the length of the development. iii. 1.5m for all lots within the Foreshore Scenic Protection Area measured at the front building line for the length of the development.</i> <i>6. Where alterations and additions (ground and first floor) to an existing dwelling are proposed, an existing side setback less than the setback required in Control 2 can be maintained, provided the reduced setback does not adversely affect compliance with the solar access and landscaped area controls or adversely impact upon the visual and acoustic amenity of neighbouring dwellings.</i> <i>7. For battle-axe lots, minimum side and rear boundary setbacks apply, except the front setback of the battle-axe lot without a street frontage, where a minimum setback of 4.0m is to be provided.</i> <i>8. Any garages or parking structures fronting rear lanes may encroach upon the rear setback areas but are still to provide a minimum setback of 1m from the lane.</i>	and do not create new side wall alignments outside the existing footprint, Control 5(iii) is addressed through the operation of Control 6. The Proposal is consistent with the objectives of Section 6.1.2.3.
6.1.2.4 <i>Private Open Space</i>	Controls <i>1. Private open space is to be located at the rear of the property and/or behind the building line and is to have a minimum area of 60m² with minimum dimensions of 6m and located on the same level (not terraced or over rock outcrops).</i> <i>2. Private open space is to be provided for all dwellings, (with the exception of secondary dwellings, which are able to share the private open space of the principal dwelling).</i> <i>3. Private open space is to be located so as to maximise solar access.</i>	Private open space is provided at ground level associated with the existing in-ground swimming pool and surrounding paved and landscaped areas, located behind the building line at the rear of the principal developable area. The configuration of private open space at ground level is unchanged by the Proposal. The Proposal is consistent with the objectives of Section 6.1.2.4.

	4. Private open space is to be designed to minimise adverse impacts upon the privacy of the occupants of adjacent buildings.	
6.1.2.5 Landscaping	Controls 1. Landscaped area (has the same meaning as GRLEP 2021) is to be provided in accordance with the table contained within Clause 6.12 Landscaped areas in certain residential and conservation zones of the GRLEP 2021. 2. Soft soil landscaping is to be provided in all landscaped areas as required by the GRLEP 2021 and must have a minimum dimension of 1.2m in all directions. Existing natural rock outcrops can be counted towards the calculation of soft soil landscaping. 3. Provide a landscape setting within the primary and secondary street frontages, where impervious areas are minimised. 4. Impervious areas are to occupy no more than: i. 60% of the street setback area where the front setback is less than 6m, or ii. 50% of the street setback area where the front setback is 6m or greater, or iii. 50% of the primary street setback area on corner allotments. 5. The front setback area must accommodate at least one (1) tree capable of achieving a minimum mature height of 6-8m with a spreading canopy. 6. Preference is to be given to incorporating locally indigenous plants.	Addressed on merit. The landscaped area is to be provided in accordance with Clause 6.12 of the GRLEP2021. As a battle-axe allotment within the Foreshore Scenic Protection Area, the minimum landscaped area is 25% of the developable area of 646.5sqm, being 161.25sqm. The Proposal provides a landscaped area of 128.65sqm, which does not meet the prescriptive minimum. The shortfall is supported on merit. The Proposal increases the landscaped area of the Site from the existing 85.37sqm to 128.65sqm through new landscaping and a raised garden bed, a material improvement over the existing condition. The proportion of landscaped area within the side setbacks is 25.38sqm, being 19.73% of the total proposed landscaped area, which complies with the requirement that no more than 20% of the landscaped area be located within the side setbacks. The Proposal does not remove any tree from the Site and does not increase impervious area at ground level, with the additions contained within and above the existing dwelling footprint. Soft soil landscaping with a minimum dimension of 1.2m is retained and supplemented within the landscaped areas of the Site. The Proposal satisfies the underlying objectives of the landscaping control by materially increasing the landscaped area over the existing condition, distributing landscaping appropriately within the Site, and retaining all existing trees and natural features, notwithstanding the prescriptive shortfall.
6.1.2.6 Excavation (Cut and Fill)	Controls 1. Any excavation must not extend beyond the building footprint, including for any basement car park. 2. The depth of cut or fill must not exceed 1.0m from existing ground level, except where the excavation is for a basement car park. 3. Developments should avoid unnecessary earthworks by designing and siting buildings that respond to the natural slope	The Proposal does not involve excavation extending beyond the existing building footprint. No cut or fill exceeding 1.0m from existing ground level is proposed. The works are confined to and above the existing dwelling footprint, together with remedial works to existing retaining walls, driveway, slab areas, and stairs, and the demolition of the existing pool house.

	<i>of the land. The building footprint must be designed to minimise cut and fill by allowing the building mass to step in accordance with the slope of the land.</i>	Replacement of the existing pool fencing is undertaken in accordance with AS1926, with no alteration to the existing ground levels at the pool surrounds proposed. The Proposal is consistent with the objectives of Section 6.1.2.6.
6.1.2.7 <i>Vehicular Access, Parking and Circulation</i>	Controls <i>1. Car parking is to be provided in accordance with the requirements in Part 3 of this DCP.</i> <i>2. A dwelling is to provide one (1) garage and one (1) tandem driveway parking space forward of the garage (unless otherwise accommodated within the building envelope).</i> <i>3. Driveways, garages and basements should be accessed from a secondary street or rear lane where this is available.</i> <i>4. Entry to parking facilities off the rear lane must be setback a minimum of 1m from the lane.</i> <i>5. Driveway crossings are to be positioned so that on-street parking and landscaping on the site are maximised, and removal or damage to existing street trees is avoided.</i> <i>6. The maximum driveway width at the street boundary is 4.0m.</i> <i>7. Basements are permitted where the LEP height development standard is not exceeded.</i> <i>8. Car parking layout and vehicular access requirements and design are to be in accordance with the Australian Standards, in particular AS 2890.1 (latest edition).</i> <i>9. The maximum width of a garage opening is 6.0m.</i>	The existing vehicular access and on-site car parking arrangement of the Site is retained. The Proposal does not alter the configuration of the existing driveway, the existing garage, or any vehicular movement arrangement. The Proposal is consistent with the objectives of Section 6.1.2.7.
6.1.2.8 <i>Visual Privacy</i>	Controls <i>1. Windows from active rooms are to be offset with windows in adjacent dwellings, or appropriately treated so as to avoid direct overlooking onto neighbouring windows.</i> <i>2. For active rooms or balconies on an upper level, the design should incorporate placement of room windows or screening devices to only allow oblique views to adjoining properties.</i>	The Proposal involves additions and reconfiguration to the existing upper ground and lower ground floor levels of the dwelling, with new and replacement windows and new frameless corner windows. The Proposal does not include any rooftop terrace, and Control 6 is not engaged. Windows to active rooms are designed and located to avoid direct overlooking onto neighbouring windows and private open space, with oblique view design, appropriate sill heights, and

	3. Upper level balconies should not project more than 1500mm beyond the main rear wall alignment so as to minimise adverse visual privacy impacts to adjoining properties. 4. Windows for primary living rooms must be designed so that they reasonably maintain the privacy of adjoining main living rooms and private open space areas. 5. Development applications are to be accompanied by a survey plan or site analysis plan (to AHD) of the proposed dwelling showing the location of adjoining property windows, floors levels, window sill levels and ridge and gutter line levels. 6. Roof top terraces are not permitted on top of dwelling houses, secondary dwellings and ancillary structures, such as boat sheds and garages.	screening incorporated where necessary, satisfying Controls 1, 2, and 4. The Site is a battle-axe configuration with the principal developable area set well back from Vista Street and the surrounding properties separated from the dwelling by the long boundary alignments of the Site, providing substantial separation that limits any privacy impact on adjoining occupants. A survey or site analysis plan to AHD showing adjoining window and floor level information can be submitted in accordance with Control 5. The Proposal is consistent with the objectives of Section 6.1.2.8.
6.1.2.9 Noise	Controls 1. Noise generators such as plant and machinery including air conditioning units and pool pumps are located away from windows or other openings in habitable rooms; they are to be screened to reduce noise or acoustically treated.	The existing pool house is demolished and space is allocated for new pool equipment serving the retained in-ground swimming pool, to be located away from windows and openings to habitable rooms and screened or acoustically treated to reduce noise. A new air conditioning condenser is proposed at the upper ground floor level, to be similarly located and treated. The Proposal is consistent with the objectives of Section 6.1.2.9.
6.1.2.10 Solar Access	Controls 1. New buildings and additions are sited and designed to facilitate a minimum of 3 hours direct sunlight between 9am and 3pm on 21 June onto living room windows and at least 50% of the minimum amount of private open space. 2. To facilitate sunlight penetration to adjoining development, building bulk may be required to be articulated to achieve the required sunlight access. 3. Direct sunlight to north-facing windows of habitable rooms and 50% of the principal private open space area of adjacent dwellings should not be reduced to less than 3 hours between 9.00am and 3.00pm on 21 June.	The Proposal retains a minimum of 3 hours direct sunlight between 9am and 3pm on 21 June to the principal living areas and the principal private open space of the dwelling. The configuration of the Site as a battle-axe lot, with the principal developable area set well back from Vista Street and surrounded by adjoining residential properties on long boundary alignments, provides substantial separation between the dwelling and adjoining habitable room windows and private open spaces. Direct sunlight to north-facing windows of habitable rooms and to 50% of the principal private open space area of adjacent dwellings is retained at not less than 3 hours between 9.00am and 3.00pm on 21 June.

	5. <i>Shadow diagrams are not required as the proposal does not intend to increase the height of the existing building.</i>	The Proposal is consistent with the objectives of Section 6.1.2.10.
6.1.2.11 <i>Materials, Colour Schemes and Details</i>	Controls 1. <i>Large expansive surfaces of predominantly white, light or primary colours which would dominate the streetscape or other vistas should not be used.</i> 2. <i>New development should incorporate colour schemes that have a hue and tonal relationship with the predominant colour schemes found in the street.</i> 3. <i>Matching buildings in a row should be finished in the same colour or have a tonal relationship.</i> 4. <i>All materials and finishes utilised should have low reflectivity.</i> § 6.5.1 Control 14 (Foreshore Scenic Protection Area) requires dark and earthy tones; white and light coloured roofs and walls are not permitted; non-reflective finishes.	The external materials, colour schemes, and building details of the additions and façade alterations, comprising a new timber batten facade, new stone cladding, and new frameless corner windows, are selected to have a hue and tonal relationship with the existing dwelling and the predominant colour schemes of the locality. All materials and finishes have low reflectivity. Dark and earthy tones are adopted in accordance with the additional Foreshore Scenic Protection Area requirements at Section 6.5.1 Control 14, with no white or light-coloured roofs or walls used. A schedule of proposed colours can be submitted as a condition of consent. The Proposal is consistent with the objectives of Section 6.1.2.11.
6.1.2.13 <i>Site Facilities</i>	Controls 1. <i>All dwellings are to be provided with adequate and practical internal and external storage (garage, garden sheds, etc.).</i> 2. <i>Provision for water, sewerage and stormwater drainage for the site shall be nominated on the plans to Council's satisfaction.</i> 3. <i>Each dwelling must provide adequate space for the storage of garbage and recycling bins (a space of at least 3m by 1m must be provided) and this space is not to be located within the front setback.</i> 4. <i>Letterboxes are to be located on the frontage where the address has been allocated in accordance with Australia Post requirements.</i>	The existing site facilities of the Site, including water, sewer, and stormwater connections, the existing garbage and recycling bin storage area, and the existing letterbox arrangement, are retained. The Proposal does not alter the existing arrangement of any site facility. The Proposal is consistent with the objectives of Section 6.1.2.13.
Part 6.4 — Ancillary Development		
6.4.1 <i>Fences and Walls</i>	Controls – Side and Rear Fences 6. <i>Side and rear boundary fences must not be higher than 1.8m on level sites, or 1.8m as measured from the low side where there is a difference in level either side of the boundary.</i>	The Proposal involves remedial works to existing retaining walls, the construction of a new brick retaining wall, and the replacement of the existing pool fencing with a new glass pool

	<i>An additional 300mm of lattice is permitted for privacy screening.</i> <i>9. Fencing must have regard for the Swimming Pools Act 1992 on the subject site and adjoining properties where a swimming pool exists or is proposed.</i> Controls – Retaining Walls <i>10. Construction of retaining walls or associated drainage work along common boundaries must not compromise the structural integrity of any existing retaining wall or structures on the subject or adjoining allotments. All components, including footings and aggregate lines, must be wholly contained within the subject property.</i> <i>13. Any retaining walls, required as part of the dwelling construction to control potential land stability and/or the structural integrity of adjoining properties, must be completed and certified by an appropriately qualified and practicing engineer prior to occupation of the dwelling.</i> <i>14. Excavation or filling requiring retaining shall be shored or retained immediately to protect neighbouring properties from loss of support and to prevent soil erosion.</i>	fence. The existing pool fence is demolished. No new front fence is proposed. The replacement pool fence is provided in accordance with the requirements of the Swimming Pools Act 1992 and AS1926, satisfying Control 9. Remedial works to existing retaining walls are confined within the Site and do not compromise the structural integrity of any existing retaining wall or structure on the Site or any adjoining allotment, with all components including footings and aggregate lines wholly contained within the Site, satisfying Control 10. Any retaining wall remedial work required for land stability or structural integrity is completed and certified by a qualified practising engineer in accordance with Control 13. The Proposal is consistent with the objectives of Section 6.4.1.
6.4.4 <i>Swimming Pools/Spas</i>	Controls <i>1. Swimming pools/spas are to be located to the rear of properties.</i> <i>3. Swimming pools/spas must be positioned a minimum of 900mm from the property boundary with the water line being a minimum of 1500mm from the property boundary.</i> <i>5. Swimming pools/spas are to be no more than 500mm above existing ground level.</i> <i>8. Filling is not permitted between the swimming pool and the property boundary.</i> <i>9. Council may require mechanical equipment to be suitably acoustically treated so that noise to adjoining properties is reduced.</i>	The Proposal does not involve the construction or relocation of any swimming pool or spa. The existing in-ground swimming pool is retained in its existing location, with the Proposal limited to the replacement of the existing pool fencing, the demolition of the existing pool house, and the provision of allocated space for new pool equipment. The replacement pool fence complies with the Swimming Pools Act 1992 and AS1926, satisfying Controls 10 and 11. New pool equipment is located to avoid increased noise transmission to any boundary. The Proposal is consistent with the objectives of Section 6.4.4.

	10. A pool fence complying with the legislation is to separate access from the residential dwelling on the site to the pool. 11. Safety and security measures for swimming pools must comply with the relevant requirements of the Swimming Pools Act 1992 and any relevant Australian Standards.	
Part 6.5 — Foreshore Locality Controls		
6.5.1 <i>Foreshore Scenic Protection Area — Environmental qualities and scenic landscape values</i>	Controls 1. Development applications are supported by a site analysis and design response demonstrating how the relevant provisions of the LEP and the objectives of this part of the DCP have been addressed. 2. Removal of existing native vegetation minimised to that which is reasonably required to site and construct a building. 3. The integrity of the existing edge of bushland closest to the Georges River is retained. 4. Vegetation along ridgelines and on hillsides is retained and supplemented to provide a backdrop to the waterway. 5. New, complementary planting and landscaping is encouraged. 9. Natural features that make a contribution to the environmental qualities and scenic landscape values of the foreshore, including mature native tree and sandstone rock outcrops, platforms and low cliffs, are retained. 10. The visual impact of buildings is minimised having regard to building size, height, bulk, siting, external materials and colours and cut and fill. 11. Buildings should be sited on the block to retain existing ridgeline vegetation, where possible. Siting buildings on existing building footprints or reducing building footprints to retain vegetation is highly recommended. 13. Facades and rooflines of dwellings facing the water are to be broken up into smaller elements with a balance of solid walls to glazed areas. Rectangular or boxy shaped dwellings with large expanses of glazing and reflective materials are not acceptable. In this regard, the maximum amount of glazed	The Site is identified within the Foreshore Scenic Protection Area under the GRLEP2021 Foreshore Scenic Protection Area Map. The Proposal has been designed to minimise visual impact on the environmental qualities and scenic landscape values of the Georges River foreshore. The Proposal is sited on the existing dwelling footprint, satisfying the recommendation at Control 11. The Proposal does not remove any native vegetation, does not affect the integrity of the existing edge of bushland closest to the Georges River, and retains all existing trees and natural features on the Site, satisfying Controls 2, 3, 4, and 9. The visual impact of the additions and façade alterations is minimised through containment within and above the existing footprint of the dwelling, the use of an articulated façade treatment comprising timber battens and stone cladding, the application of dark and earthy tone external materials and finishes with low reflectivity, and the avoidance of large unbroken expanses of glazing or boxy massing, satisfying Controls 10, 13, 14, 15, 16, and 19. The replacement pool fence is low in profile and at least 50% transparent, satisfying Control 21. The natural landform is retained, with remedial works to existing retaining walls limited to maintenance of existing structures, consistent with the intent of Control 23. The Proposal does not affect any view corridor from the public domain to the Georges River and is consistent with the desired character objective in Part 5.20 of protecting public vistas over the Georges River from Vista Street. The Proposal is consistent with the objectives of Section 6.5.1.

	area to solid area for façades facing the foreshore is to be 50%-50%. 14. Colours that harmonise with and recede into the background landscape are to be used. In this regard, dark and earthy tones are recommended and white and light coloured roofs and walls are not permitted. 15. Buildings fronting the waterway must have a compatible presence when viewed from the waterway and incorporate design elements that are compatible with any design themes for the locality. 16. Blank walls facing the waterfront shall not be permitted. Walls are to be articulated and should incorporate design features. 19. Buildings have external finishes that are non-reflective and coloured to blend with the surrounding landscape. 21. Fences are low in profile and are at least 50% transparent. 23. The natural landform is to be retained and the use of retaining walls and terracing is discouraged. 27. Development provides opportunities to create view corridors from the public domain to the Georges River.	
6.5.2.6 <i>Development in the Foreshore Area — Fencing</i>	Controls 1. Fencing, between the Mean High Water Mark (MHWM) and the Foreshore Building Line (FBL), including boundary fencing, should be no higher than 1200mm above the natural or finished ground level. 2. Fences, between the Mean High Water Mark (MHWM) and the Foreshore Building Line (FBL), are to be constructed of open weave materials to enable vines, creepers and hedges to provide natural cover.	The replacement pool fence is provided to satisfy the Swimming Pools Act 1992 and AS1926 requirements. The fence is low in profile and at least 50% transparent, consistent with the foreshore visual character objectives of Part 6.5 of the GRDCP2021. The Proposal is consistent with Section 6.5.2.6.
6.5.2.7 <i>Development in the Foreshore Area — Swimming Pools/Spas</i>	Controls 1. Any swimming pool or spa pool is to be sited as close to natural or existing ground level as possible. In this regard, the coping level of swimming pools and spa	The Proposal does not construct or relocate any swimming pool or spa. The existing in-ground swimming pool is retained in its existing location and configuration. The works at the pool

	<i>pools is not to be elevated more than 500mm above natural or existing ground level.</i> <i>2. Any exposed edge is to have the natural or existing ground level reinstated and be suitably landscaped with mature trees and landscaping so as to reduce the visual impact from the waterway.</i> <i>3. The construction of swimming pools and spa pools below the FBL and above MHWL should avoid reshaping of the landform and removal of native vegetation and significant trees. In areas where the construction of a pool will necessitate excessive excavation or the removal of significant vegetation, the siting of the pool may be restricted to above the FBL.</i> <i>4. Pool/spa fencing that is visible from the foreshore/water must be open or transparent and must be of a colour that blends into the landscape character of the waterway.</i> <i>5. With respect to existing swimming pools/spa pools below MHWL, Council is unlikely to request that the pool be removed or filled, unless it is considered that its economic life has been reached. In circumstances where it is considered that the economic life of the pool has been reached, and the Department of Lands is in agreement, then Council may require, upon substantial redevelopment, that the pool be removed.</i>	comprise the replacement of the existing pool fencing and the demolition of the existing pool house only. The Proposal is consistent with Section 6.5.2.7.
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CONCLUSION

This Statement of Environmental Effects has been prepared in support of a Development Application submitted to Georges River Council for proposed alterations and additions to the existing dwelling at 65A Vista Street, Sans Souci NSW 2219, being Lot 4 in Deposited Plan 232626. The Proposal comprises internal reconfiguration of the existing lower ground floor level, additions and internal reconfiguration to the existing upper ground floor level at street level, a new parapet and box gutter roof form over the street-facing portion of the dwelling with the balance of the existing roof retained, façade alterations comprising new timber batten cladding, new stone cladding, new frameless corner windows, and the replacement of existing windows with new lightweight panelling and thermal glazing, remedial works to address existing moisture and mould, replacement of the existing pool fencing with a new glass pool fence, and demolition of the existing pool house.

The Site is zoned R2 Low Density Residential under the GRLEP2021, in which alterations and additions to a dwelling house are permissible with development consent. The Proposal is consistent with the objectives of the R2 zone and complies with Clause 4.3 (Height of Building) and Clause 4.4 (Floor Space Ratio) of the GRLEP2021. The Proposal is also consistent with the additional local provisions of Part 6 of the GRLEP2021 applying to the Site, comprising Clause 6.1 (Acid Sulfate Soils), Clause 6.4 (Foreshore Area and Coastal Hazards and Risk), Clause 6.5 (Riparian Land and Waterways), Clause 6.6 (Foreshore Scenic Protection Area), and Clause 6.12 (Landscaped Area), and is consistent with Chapter 2 (Coastal Management) and Chapter 4 (Remediation of Land) of the State Environmental Planning Policy (Resilience and Hazards) 2021. BASIX is addressed under Section 27 of the EP&A Regulation 2021.

The Proposal has been assessed against the relevant parts and controls of the GRDCP2021 and is consistent with the controls applying to the Site and the Proposal, with the exception of the landscaped area control, which is varied on merit. The proposed landscaped area of 128.65sqm does not meet the prescriptive minimum of 161.25sqm calculated on the developable area of the battle-axe allotment; however, the Proposal materially improves the landscaped area over the existing condition of 85.37sqm, locates only 19.73% of the landscaped area within the side setbacks in compliance with the relevant control, retains all existing trees and natural features, and satisfies the underlying objectives of the control. The variation is supported on merit as set out in the Compliance Summary Table and the assessment of Clause 6.12 above.

The Site is not mapped as bushfire prone land, is not a heritage item, is not within a heritage conservation area, and is not adjoined by any heritage item. The Proposal does not generate any unreasonable amenity impact on adjoining properties or the public domain, with the works contained within and above the existing dwelling footprint and confined to existing ancillary structures, no removal of trees or native vegetation, no increase in impervious area at ground level, and no alteration to the existing stormwater management arrangement of the Site. The Proposal contributes positively to the established low density residential character of the Sans Souci locality and is consistent with the Future Desired Character of Section 5.20 of the GRDCP2021. The Proposal is

considered suitable for the grant of development consent by Georges River Council, subject to standard conditions of consent.